Department of Taxation and Finance

New York State and Local Sales and Use Tax

Certificate of Capital Improvement

ST-124
(12/15)

After this certificate is completed and signed by both the customer and the contractor performing the capital improvement, it must be kept by the contractor. Copies of this certificate must be furnished to all subcontractors on the job and retained as part of their records.

Read this form completely before making any entries.

This certificate may not be used to purchase building materials exempt from tax.

Name of **contractor** *(print or type)*			Name of **customer** *(print or type)*		
Innovative Closet Designs LLC					
Address *(number and street)*			Address *(number and street)*		
445 West Main Street					
City	State	ZIP code	City	State	ZIP code
Wyckoff	NJ	07481			
			Sales tax *Certificate of Authority* number (if any)		

To be completed by the customer

Describe capital improvement to be performed:

Project name			
Street address (where the work is to be performed)	City	State	ZIP code
		NY	

I certify that:

- I am the *(mark an **X** in one)* ☐ owner ☐ tenant of the real property identified on this form; **and**
- the work described above will result in a capital improvement to the real property as outlined in the instructions of this form; **and**
- this contract *(mark an **X** in one)* ☐ includes ☒ does not include the sale of any items that will **not** become a permanent part of the real property (for example, a free-standing microwave or washing machine).

I understand that:

- I will be responsible for any sales tax, interest, and penalty due on the contractor's total charge for tangible personal property and for labor if it is determined that this work does not qualify as a capital improvement; **and**
- I will be required to pay the contractor the appropriate sales tax on tangible personal property (and any associated services) when the property installed by the contractor does not become a permanent part of the real property; **and**
- I will be subject to civil or criminal penalties (or both) under the Tax Law if I issue a false or fraudulent certificate.

Signature of customer	Title	Date

To be completed by the contractor

I, the contractor, certify that I have entered into a contract to perform the work described by the customer named above, and that I accept this form in good faith. (A copy of the written contract, if any, is attached.) I understand that my failure to collect tax as a result of accepting an improperly completed certificate will make me personally liable for the tax otherwise due, plus penalties and interest.

Signature of contractor or officer	Title	Date
	President	

This certificate is not valid unless all entries are completed.